

25STCV07954 25STCV07954

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-11

Motion: PLAINTIFF'S MOTION TO STAY PROCEEDINGS

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Case Number: 25STCV07954 Hearing Date: September 11, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

ALISA

CLARK,

Plaintiff,

vs.

GENERAL MOTORS LLC; and DOES 1through 10, inclusive,

Defendants.

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CASE NO.: 25STCV07954

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
TO STAY PROCEEDINGS

Dept. 733

8:30 a.m.

September 11, 2026

I.

INTRODUCTION

This is a
Song-Beverly action.

On March 19, 2025,
Plaintiff Alisa Clark ("Plaintiff") initiated this action against

Defendant General Motors, LLC
("Defendant").

On September 19,
2025, Plaintiff filed a First Amended

Complaint ("FAC") alleging causes
of action for (1) Violation of Subdivision (d) of Civil Code section 1793.2,
(2) Violation of Subdivision (b) of Civil Code section 1793.2, (3) Violation of
Subdivision (a)(3) of Civil Code section 1793.2, (4) Breach of Implied Warranty

of Merchantability, and (5) Fraudulent Inducement – Concealment.

On

May 15, 2026, Plaintiff filed the instant motion to stay proceedings.

On

August 28, 2026, Defendant filed an opposition.

No reply was filed.

II.

LEGAL STANDARD

As explained by the California

Supreme Court in *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111:

“[A] court ordinarily has

inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (*People v. Bell* (1984) 159

Cal.App.3d 323, 329....) As the court in *Landis v. North American Co.* (1936) 299 U.S. 248, 254... explained, “the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.”

(*Id.* at 141; see *Freiberg v. City*

of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.”].)

III.

DISCUSSION

Plaintiff seeks to

stay all proceedings in this matter pending the Second District Court of Appeal’s resolution of *Price v. General Motors* (B353231, app. pending), which presents the novel legal issue that is implicated in this case: whether a manufacturer’s post-filing election into the Song-Beverly Act’s new procedural regime can retroactively time-bar a complaint that was already on file when the new statute of repose took effect.

Like the instant case, this Court has other Song-Beverly cases that demonstrate a similar fact pattern: the plaintiff bringing Song-Beverly claims that are outside the six-year time statute of repose delineated in Code of Civil Procedure section 871.21(a) (Assembly Bill No. 1755), but were filed prior to a defendant-manufacturer opting into the law pursuant to section 871.30. This Court has been taking the approach that such retroactive application presents due process concerns. Since the Court of Appeal is pending a decision concerning this very issue, Plaintiff argues that a stay is warranted to promote judicial economy.

The proponent of a stay bears the burden of establishing its need.” (Clinton v. Jones (1997) 520 U.S. 681, 708.) The party requesting a stay “must make out a clear case of hardship or inequity in being required to go forward, if there is even a fair possibility that the stay for which he prays will work damage to some one else.” (Landis v. North American Co. (1936) 299 U.S. 248, 254–255.) The fact that another factually similar but separate matter has currently noticed an intent to appeal regarding a common issue does not establish any hardship or inequity to Plaintiff in the pursuit of Plaintiff’s own separate litigation, nor does Plaintiff allege any such hardship in support of this Motion.

Furthermore, there is simply no timeline as to when the Court of Appeal’s decision will be brought down, and imposing an indefinite stay in the instant case, and consequently many others with similar fact patterns, is not in the interests of justice and would prejudice Defendant, who has been diligently litigating these cases. (Yong v. I.N.S. (9th Cir. 2000) 208 F.3d 1116, 1119 [“If a stay is especially long or its term is indefinite, we require a greater showing to justify it.”].)

Plaintiff’s motion is denied.

IV.

CONCLUSION

Based on the foregoing, Plaintiff’s motion to stay proceedings is DENIED.

Dated this 11th
day of September 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court